



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2758: McMullen Valley; eligible entities; groundwater

BIASIUCCI FLOOR AMENDMENT

1. Adds an exception that a county BOS may use general county monies for grants for certain water improvements programs. (Sec. 1)
2. Requires the ADWR Director to post the provided table of groundwater transportation fees on ADWR's website. (Sec. 4)
3. Instructs the ADWR Director to annually update the table of fees with changes in the GDP price deflator and fee adjustments determined pursuant to existing statute. (Sec. 4)
4. Allows a county, that establishes a water improvements program, to allocate a portion of collected groundwater transportation fees to the county water improvements program for qualified owners of residential property who reside within the related groundwater basin or subbasin. (Sec. 4)
5. Makes technical and conforming changes. (Sec. 1, 4, 5)

BIASIUCCI FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2758
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 11-254.09, Arizona Revised Statutes, is
3 amended to read:

4 11-254.09. Water improvements program; grants; requirements;
5 annual report

6 A. The board of supervisors may establish a program to allow
7 persons to make gifts, grants or donations for the purpose of providing
8 financial assistance to qualified owners of residential real property for
9 making improvements to an existing drinking water well or providing for a
10 water delivery system for the residence.

11 B. The board shall designate an entity to operate the program, to
12 establish criteria for grants and to award grants as prescribed by this
13 section. The entity may be a county agency, department or division or may
14 be a private, nonprofit corporation as determined by the board of
15 supervisors.

16 C. The program shall do all of the following:

17 1. Limit grant recipients to persons who are low-income or
18 fixed-income owners of residential property.

19 2. Develop application criteria and criteria for awarding grants.

20 3. Restrict a grant recipient's use of grant monies to deepening an
21 existing drinking water well for the recipient's residence or to plumbing
22 or replumbing the recipient's residence for a water delivery system.

23 D. [EXCEPT AS PROVIDED IN SECTION 45-556, SUBSECTION G.] the board
24 of supervisors may not use general county monies for grants under the
25 program.

26 E. The entity that operates the program shall make and submit to
27 the county board of supervisors, the president of the senate and the
28 speaker of the house of representatives on or before July 1 of each year a
29 report containing a description of program operations of the preceding

1 year, including the amount of gifts, grants or donations received and the grants awarded.>>

Sec. 2. Repeal

Section 45-552, Arizona Revised Statutes, is repealed.

Sec. 3. Title 45, chapter 2, article 8.1, Arizona Revised Statutes, is amended by adding a new section 45-552, to read:

45-552. Transportation of groundwater withdrawn in McMullen Valley basin to an active management area; annual report; definition

A. AN ENTITY DESCRIBED IN SUBSECTION B OF THIS SECTION THAT OWNS HISTORICALLY IRRIGATED ACRES IN THE MCMULLEN VALLEY GROUNDWATER BASIN MAY WITHDRAW GROUNDWATER FROM THE LAND FOR TRANSPORTATION TO A LOCATION AND FOR THE PURPOSES PRESCRIBED IN SUBSECTION D OF THIS SECTION:

1. IF THE GROUNDWATER IS WITHDRAWN:

(a) FROM A DEPTH TO ONE THOUSAND TWO HUNDRED FEET AT THE SITE OR SITES OF THE PROPOSED WITHDRAWALS.

(b) AT A RATE THAT, WHEN ADDED TO THE EXISTING RATE OF WITHDRAWALS IN THE AREA, DOES NOT CAUSE THE GROUNDWATER TABLE AT THE SITE OR SITES OF THE WITHDRAWALS TO DECLINE MORE THAN AN AVERAGE OF TEN FEET PER YEAR DURING THE ONE HUNDRED YEAR EVALUATION PERIOD.

2. IN AN AMOUNT EITHER:

(a) PER ACRE OF THE HISTORICALLY IRRIGATED ACRES, NOT TO EXCEED:

(i) SIX ACRE-FEET IN ANY YEAR.

(ii) THIRTY ACRE-FEET FOR ANY PERIOD OF TEN CONSECUTIVE YEARS COMPUTED IN CONTINUING PROGRESSIVE SERIES BEGINNING IN THE YEAR TRANSPORTATION OF GROUNDWATER FROM THE LAND BEGINS.

(b) ESTABLISHED BY THE DIRECTOR, BUT ONLY IF THE DIRECTOR DETERMINES THAT WITHDRAWALS IN AN AMOUNT GREATER THAN THAT ALLOWED BY SUBDIVISION (a) OF THIS PARAGRAPH WILL NOT UNREASONABLY INCREASE DAMAGE TO RESIDENTS OF SURROUNDING LAND AND OTHER WATER USERS IN THE MCMULLEN VALLEY GROUNDWATER BASIN, OR THAT ONE OR MORE OF THE ENTITIES WITHDRAWING THE GROUNDWATER WILL MITIGATE THE DAMAGE TO THE RESIDENTS AND OTHER WATER USERS.

3. BY A PUBLIC SERVICE CORPORATION, IF ALL COSTS ASSOCIATED WITH WITHDRAWING, TRANSPORTING AND DELIVERING GROUNDWATER AWAY FROM THE MCMULLEN VALLEY GROUNDWATER BASIN ARE COLLECTED FROM THE CUSTOMERS OF THE PUBLIC SERVICE CORPORATION'S WATER DISTRICT WHERE THE TRANSPORTED GROUNDWATER IS USED.

4. IF BEFORE THE WITHDRAWAL OF GROUNDWATER FROM THE MCMULLEN VALLEY GROUNDWATER BASIN, THE ELIGIBLE ENTITY HAS DEMONSTRATED COMPLIANCE WITH THE CRITERIA IN THIS SUBSECTION USING A HYDROLOGICAL STUDY. THE DIRECTOR SHALL PRESCRIBE THE CONTENTS OF THE STUDY THAT IS SUBMITTED WITH THE APPLICATION.

5. IF BEFORE THE WITHDRAWAL OF GROUNDWATER FROM THE MCMULLEN VALLEY GROUNDWATER BASIN, THE ELIGIBLE ENTITY INSTALLS WATER MEASURING DEVICES, OR OTHER SIMILARLY RELIABLE AND ACCESSIBLE METHODS AS APPROVED BY THE DEPARTMENT, TO DETERMINE THE VOLUME OF GROUNDWATER THAT IS WITHDRAWN FROM

1 WELLS RELATED TO THE TRANSPORTATION ACTIVITY AND THAT IS TRANSPORTED OUT
2 OF THE MCMULLEN VALLEY GROUNDWATER BASIN BY PIPELINES, CANALS OR CONDUITS.

3 6. IF WITHIN THIRTY DAYS AFTER THE WITHDRAWAL OF GROUNDWATER FROM
4 THE MCMULLEN VALLEY GROUNDWATER BASIN FOR TRANSPORTATION, THE ELIGIBLE
5 ENTITY SUBMITS A MONTHLY REPORT TO THE DEPARTMENT CONTAINING ALL OF THE
6 FOLLOWING INFORMATION:

7 (a) THE VOLUME OF GROUNDWATER THE ENTITY WITHDREW FROM THE MCMULLEN
8 VALLEY GROUNDWATER BASIN IN THE PRECEDING MONTH.

9 (b) THE VOLUME OF GROUNDWATER THE ENTITY TRANSPORTED OUT OF THE
10 MCMULLEN VALLEY GROUNDWATER BASIN IN THE PRECEDING MONTH.

11 (c) THE END USE OR DESTINATION OF GROUNDWATER THE ENTITY
12 TRANSPORTED OUT OF THE MCMULLEN VALLEY GROUNDWATER BASIN IN THE PRECEDING
13 MONTH.

14 B. THE FOLLOWING ENTITIES ARE ELIGIBLE TO TRANSPORT GROUNDWATER
15 AWAY FROM THE MCMULLEN VALLEY GROUNDWATER BASIN PURSUANT TO SUBSECTION A
16 OF THIS SECTION:

17 1. THIS STATE.

18 2. A POLITICAL SUBDIVISION OF THIS STATE.

19 3. A PUBLIC SERVICE CORPORATION THAT IS REGULATED BY THE
20 CORPORATION COMMISSION AND THAT HOLDS A CERTIFICATE OF CONVENIENCE AND
21 NECESSITY FOR WATER SERVICE.

22 C. THE DIRECTOR SHALL ADOPT RULES TO IMPLEMENT THIS SECTION,
23 INCLUDING FOR THE REPORTING OF GROUNDWATER TRANSPORTED FROM THE MCMULLEN
24 VALLEY GROUNDWATER BASIN.

25 D. THE FOLLOWING LOCATIONS AND PURPOSES ARE ELIGIBLE TO RECEIVE
26 GROUNDWATER TRANSPORTED AWAY FROM THE MCMULLEN VALLEY GROUNDWATER BASIN
27 PURSUANT TO SUBSECTION A OF THIS SECTION:

28 1. AN INITIAL ACTIVE MANAGEMENT AREA FOR USE BY AN ELIGIBLE ENTITY
29 OR THE ARIZONA WATER BANKING AUTHORITY PURSUANT TO SECTION 45-2491.

30 2. LA PAZ COUNTY BY AN ELIGIBLE ENTITY IN A TOTAL CUMULATIVE VOLUME
31 NOT TO EXCEED TEN PERCENT OF THE TOTAL ANNUAL VOLUME OF GROUNDWATER THE
32 DEPARTMENT DETERMINES IS AVAILABLE FOR TRANSPORT OUT OF THE MCMULLEN
33 VALLEY GROUNDWATER BASIN. AN ELIGIBLE ENTITY IN LA PAZ COUNTY MAY DO
34 EITHER OF THE FOLLOWING:

35 (a) TRANSPORT GROUNDWATER FROM HISTORICALLY IRRIGATED ACRES IN THE
36 MCMULLEN VALLEY GROUNDWATER BASIN OWNED BY THE ELIGIBLE ENTITY TO A
37 LOCATION IN LA PAZ COUNTY FOR THE ELIGIBLE ENTITY'S OWN USE.

38 (b) SELL OR LEASE GROUNDWATER FROM HISTORICALLY IRRIGATED ACRES
39 OWNED BY THE ELIGIBLE ENTITY THAT ARE LOCATED IN LA PAZ COUNTY TO A
40 DESIGNATED PROVIDER IN THE PHOENIX, TUCSON OR PINAL ACTIVE MANAGEMENT AREA
41 FOR THE DESIGNATED PROVIDER'S OWN USE.

42 E. ANY LOCAL USE OF GROUNDWATER BY AN ELIGIBLE ENTITY THAT SELLS OR
43 LEASES GROUNDWATER PURSUANT TO SUBSECTION D, PARAGRAPH 2 OF THIS SECTION
44 SHALL COUNT TOWARD THE ELIGIBLE ENTITY'S MAXIMUM PER ACRE WITHDRAWAL LIMIT
45 PRESCRIBED IN SUBSECTION A, PARAGRAPH 2, SUBDIVISION (a) OF THIS SECTION.

46 F. ON OR BEFORE JULY 1 OF EACH YEAR, THE DEPARTMENT SHALL SUBMIT A
47 REPORT TO THE GOVERNOR, THE PRESIDENT OF THE SENATE AND THE SPEAKER OF THE

1 HOUSE OF REPRESENTATIVES, AND SHALL PROVIDE A COPY OF THIS REPORT TO THE
2 SECRETARY OF STATE, OF THE TOTAL AMOUNT OF GROUNDWATER ALL ELIGIBLE
3 ENTITIES WITHDREW FROM THE MCMULLEN VALLEY GROUNDWATER BASIN IN THE
4 PRECEDING YEAR.

5 G. THIS SECTION DOES NOT PROHIBIT A PERSON FROM STORING AND
6 RECOVERING WATER THAT IS NOT GROUNDWATER AND THAT IS STORED PURSUANT TO
7 CHAPTER 3.1 OF THIS TITLE. WATER THAT IS NOT GROUNDWATER AND THAT IS
8 STORED PURSUANT TO CHAPTER 3.1 OF THIS TITLE DOES NOT COUNT TOWARD THE
9 WITHDRAWAL LIMITS PRESCRIBED IN SUBSECTION A, PARAGRAPH 2 OF THIS SECTION.

10 H. FOR THE PURPOSES OF THIS SECTION, "HISTORICALLY IRRIGATED ACRES"
11 MEANS LAND OVERLAYING AN AQUIFER THAT WAS IRRIGATED WITH GROUNDWATER FROM
12 THAT AQUIFER BEFORE JANUARY 1, 1988.

13 <<Sec. 4. Section 45-556, Arizona Revised Statutes, is amended to
14 read:

15 45-556. Groundwater transportation fee; annual adjustment;
16 credits; enforcement

17 A. Except as provided in subsection B of this section, a person who
18 directly or indirectly transports groundwater, withdrawn in a groundwater
19 basin or ~~[sub-basin]~~ [SUBBASIN] as provided by this article or in the
20 Pinal active management area, away from the county in which it was
21 withdrawn to an initial active management area shall pay annually to the
22 county a groundwater transportation fee determined by the director for
23 each acre-foot of groundwater transported directly or indirectly away from
24 the county, ~~[less]~~ [MINUS] any amount of central Arizona project water
25 actually used on the property from which the groundwater is transported.
26 [THE FEES COLLECTED PURSUANT TO THIS SUBSECTION ARE CONSIDERED GENERAL
27 COUNTY MONIES AND SHALL BE DEPOSITED IN THE COUNTY GENERAL FUND.]

28 B. A person is not required to pay a transportation fee under this
29 section for stored water withdrawn pursuant to recovery well permits
30 issued by the director pursuant to this title.

31 C. Except as provided in subsection D of this section~~[.]~~ the
32 director shall set the fee as follows for the cumulative amount of
33 groundwater transported away from the county, ~~[less]~~ [MINUS] any amount of
34 central Arizona project water actually used on the property from which the
35 groundwater is transported:

<u>Net Groundwater Transported</u>	<u>Fee Per Acre-Foot</u>
0 - 1,000,000 acre-feet	\$ 3.00
1,000,001 - 2,000,000 acre-feet	\$ 5.00
2,000,001 - 3,000,000 acre-feet	\$ 7.50
3,000,001 - 4,000,000 acre-feet	\$10.00
4,000,001 - 5,000,000 acre-feet	\$15.00
Over 5,000,000 acre-feet	\$30.00

43 D. The director shall~~[.]~~

44 1. WITHIN SIXTY DAYS AFTER THE EFFECTIVE DATE OF THIS AMENDMENT TO
45 THIS SECTION, POST ON THE DEPARTMENT'S WEBSITE THE TABLE OF FEES
46 ESTABLISHED PURSUANT TO SUBSECTION C OF THIS SECTION AND ANNUALLY UPDATE

1 THE TABLE WITH THE ANNUAL CHANGE IN THE GDP PRICE DEFLATOR AND FEE
2 ADJUSTMENTS DETERMINED PURSUANT TO PARAGRAPH 2 OF THIS SUBSECTION.

3 2.] Annually adjust the dollar amount of the fee according to the
4 annual changes in the GDP price deflator, as defined in section 41-563,
5 using the 1993 calendar year as the base year. The director shall
6 immediately notify all concerned parties of the fee adjustments under this
7 [subsection] [PARAGRAPH].

8 E. Credits are allowed against the fees imposed by this section as
9 described and in the amounts provided under this subsection. If the
10 amount of the credit exceeds the amount of the fee imposed for any year,
11 the unused portion of the credit may be carried forward and applied to
12 subsequent years' fees until the amount of the credit is exhausted. The
13 allowable credits are as follows:

14 1. The amount of any increase in property tax revenues, including
15 contributions in lieu of property taxes under title 9, chapter 4, article
16 3, derived from remote municipal property, as defined in section 42-15251,
17 from which the groundwater is withdrawn. The credit shall account for
18 increased revenues due to improvements to the property and increased
19 revenues due to higher property tax valuations and assessment ratios
20 resulting from changes in use of the property. The credit shall not
21 account for increased revenues due to normal market or economic factors.
22 The amount of the credit for any year is the sum of the amounts computed
23 under subdivisions (a) and (b) [OF THIS PARAGRAPH] as follows:

24 (a) Delete from consideration under this subdivision any property
25 with respect to which an amount is computed under subdivision (b) [OF THIS
26 PARAGRAPH]. Subtract the amount of property tax or in lieu revenues that
27 would have been derived from the remaining property during the immediately
28 preceding tax year if the use of and improvements to the property had
29 remained unchanged since the date the city or town acquired the property
30 from the amount of property tax or in lieu revenues actually derived from
31 that property during the immediately preceding tax year. If a city or
32 town conveys all or part of its interest in remote municipal property to
33 another political subdivision, the political subdivision succeeds to the
34 credit allowed under this section. The amount of credit computed under
35 this subdivision shall be computed each year~~[,]~~ beginning in the year
36 groundwater is first transported~~[,]~~ and, if not used to offset the fee
37 under this section, shall be cumulated from year to year.

38 (b) This subdivision applies with respect to any portion of the
39 remote municipal property that, before January 1, 1992, was classified at
40 that time as class four property for purposes of property taxation under
41 title 42 but was developed or improved at any time after December 31, 1991
42 and is not currently classified as class two property. Subtract the
43 amount of property tax or in lieu revenues that would have been derived
44 from that developed or improved portion of the remote municipal property
45 during the immediately preceding tax year if the use of and improvements
46 to the property had remained unchanged since the date the city or town
47 acquired the property from the amount of property tax or in lieu revenues

1 actually derived from that portion of the property during the immediately
2 preceding tax year. If a city or town conveys all or part of its interest
3 in remote municipal property to another political subdivision, the
4 political subdivision succeeds to the credit allowed under this section.
5 The amount of credit computed under this subdivision shall be computed
6 each year[~~,-~~] beginning in the year that the property is developed or
7 improved and reclassified for tax purposes[~~,-~~] and, if not used to offset
8 the fee under this section, shall be cumulated from year to year.

9 2. An amount equal to the market value of land donated to the
10 county if the county agrees in writing to prohibit or limit the withdrawal
11 of groundwater from the land. The amount of the credit shall account for
12 the reduced value of the land due to the groundwater withdrawal
13 limitations.

14 3. An amount agreed to by intergovernmental agreement between the
15 county in which the groundwater is withdrawn and the city, town or other
16 person transporting the groundwater.

17 F. The board of supervisors of a county to which fees are due and
18 payable under this section may request the county attorney to commence and
19 prosecute any action or proceeding to enforce the collection of the fees.

20 [G. NOTWITHSTANDING SUBSECTION A OF THIS SECTION, A COUNTY THAT
21 ESTABLISHES A WATER IMPROVEMENTS PROGRAM PURSUANT TO SECTION 11-254.09 MAY
22 DESIGNATE AN AMOUNT OR PERCENTAGE OF THE TOTAL GROUNDWATER TRANSPORTATION
23 FEES RECEIVED TO BE USED UNDER THE WATER IMPROVEMENTS PROGRAM ONLY FOR
24 QUALIFIED OWNERS OF RESIDENTIAL PROPERTY WHO RESIDE WITHIN THE GROUNDWATER
25 BASIN OR SUBBASIN FROM WHICH THE GROUNDWATER WAS WITHDRAWN AND TRANSPORTED
26 AWAY. THE COUNTY SHALL SEPARATELY ACCOUNT FOR MONIES RECEIVED FROM THE
27 FEES IMPOSED PURSUANT TO SUBSECTION A OF THIS SECTION, AND ANY MONIES IN
28 EXCESS OF THE AMOUNT OR PERCENTAGE DESIGNATED BY THE COUNTY SHALL BE
29 DEPOSITED IN THE COUNTY GENERAL FUND.]>>

30 <<Sec. 5. Section 45-2281, Arizona Revised Statutes, is amended to
31 read:

32 45-2281. Establishment of funds; allocation of authority
33 revenues; member dues; applicability

34 A. On the authority's formation, a grant fund, a water acquisition
35 fund and an operating fund are established. The authority's revenues
36 shall be deposited in and disbursed from the funds as provided by this
37 section. Revenues deposited in the grant fund may be used to make grants
38 to authority members for water acquisition, water conservation and water
39 reuse. Revenues deposited in the water acquisition fund may be used to
40 acquire water pursuant to section 45-2245. Revenues deposited in the
41 operating fund shall be used as provided in subsection E of this section.

42 B. Except as provided in subsection D of this section and for an
43 authority that is formed in a county that contains a portion of the
44 Harquahala irrigation non-expansion area and that does not contain any
45 portion of an active management area, all revenues of the authority shall
46 be deposited in the grant fund except the following:

1 1. Dues paid by authority members which shall be deposited in the
2 operating fund.

3 2. Ten percent of all amounts paid by municipal subcontractors
4 under subcontracts entered into as provided in section 45-2244, subsection
5 B which may be deposited in the operating fund or the water acquisition
6 fund as determined by the board.

7 3. Fifty percent of all amounts paid by subcontractors of the
8 authority pursuant to subcontracts entered into as provided in section
9 45-2244, subsection E or F.

10 4. That portion of the monies earned by the authority under
11 subcontracts entered into pursuant to section 45-2245, subsection H that
12 is equal to the cost to the authority of obtaining the water transferred
13 under those subcontracts and, after payment of \$7,500,000 as adjusted
14 pursuant to subsection C of this section, all of the monies earned from
15 those subcontracts.

16 C. Except as provided in subsection B of this section, all of the
17 authority's revenues shall be deposited in the grant fund until the full
18 amount of the initial grant and any additional amounts required in a grant
19 agreement between the authority and the member that receives the grant
20 have been disbursed from the grant fund as provided in this subsection.
21 The initial grant from the grant fund shall be made to the authority
22 member that transferred, or caused to be transferred, to the authority the
23 right to the delivery of eighteen thousand five hundred acre-feet per year
24 of Colorado River water in connection with the authority's formation. The
25 amount of the grant to that member shall equal \$7,500,000 plus any
26 additional monies that the authority and the member agree to in a grant
27 agreement between the authority and the member, which amount shall be
28 adjusted annually from the date of the authority's formation either for
29 inflation or as may otherwise be provided in the subcontracts of the
30 authority or in the grant agreement, until the amount of the initial grant
31 required by this subsection and any additional amounts required by the
32 grant agreement are paid in full. The initial grant may be disbursed in a
33 lump sum or in partial payments in accordance with the request of the
34 authority member that is entitled to receive the grant and as revenues
35 become available to the authority and are deposited in the grant fund.
36 The authority member that is entitled to receive the grant may request
37 that disbursements be made whenever revenues have been deposited in the
38 grant fund. Notwithstanding section 45-2282, the authority shall promptly
39 disburse those revenues that are deposited in the fund on receipt of a
40 request from that member.

41 D. After the disbursement of the full amount of the initial grant
42 and any additional amounts required in a grant agreement of the authority
43 from the grant fund as provided in subsection C of this section, the
44 authority's revenues, except dues paid by authority members, may be
45 deposited in the grant fund, water acquisition fund or operating fund as
46 determined by the board.

1 E. The authority shall establish a schedule of dues that is
2 sufficient, when aggregated with other monies available for the payment of
3 administrative expenses, to pay the estimated administrative expenses of
4 the authority. Dues shall be assessed and allocated equitably among
5 authority members as determined by the board. All dues received by the
6 authority shall be deposited in the operating fund. Expenditures may be
7 made from the operating fund to pay:

8 1. The authority's administrative expenses.

9 2. The costs of the authority's formation including an equitable
10 portion of the costs of the municipal corporation that transferred rights
11 to the delivery of Colorado River water as provided in section 45-2202.

12 3. The costs associated with holding any entitlement to water
13 acquired by the authority.

14 4. Subject to subsection C of this section, the costs incurred by
15 the authority in the operation of any project undertaken by the authority
16 pursuant to this chapter.

17 5. Amounts payable to the United States annually for the right to
18 hold and use the eighteen thousand five hundred acre-feet per year of
19 Colorado River water acquired by the authority pursuant to section
20 45-2202, subsection C which amounts may include any tax, fee or excise
21 imposed on the sale or transfer of the water.

22 F. Any authority member that is in arrears in the payment of its
23 dues for more than sixty days shall lose the right of its appointed
24 director to vote on all authority matters until all of the dues that are
25 in arrears are fully paid. An authority member whose dues are in arrears
26 does not lose membership in the authority because of the arrearage.

27 G. [EXCEPT AS PROVIDED IN SECTION 45-556, SUBSECTION G.] all
28 transportation fees paid to the authority pursuant to section 45-556 may
29 be deposited in the grant fund, water acquisition fund or operating fund
30 established [by] [PURSUANT TO] this section as determined by the board.

31 H. For an authority that is formed in a county with a population of
32 less than ninety thousand persons, all revenues of the authority shall be
33 deposited in the grant fund, water acquisition fund or operating fund
34 established [by] [PURSUANT TO] this section as determined by the board.>>

35 Enroll and engross to conform

36 Amend title to conform

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